

SPAIN
2012

Table of Contents

1. Overview of the tax-benefit system	1
2. Unemployment insurance	3
3. Unemployment assistance	6
4. Social assistance	10
5. Housing benefits for rented accommodation	13
6. Family benefits	14
7. Childcare for pre-school children	17
8. Employment-conditional benefits	19
9. Lone-parent benefits	23
10. Tax system	25
11. Part-time work	29
12. Policies development	30
Social security contributions to general government	32
Social security contributions paid to institutions outside general government	32
Payroll taxes	33

1. Overview of the tax-benefit system

Unemployed persons are covered by two successive benefits: a contributory unemployment insurance benefit for 120-to-720 days depending on contributions, then an assistance benefit for 3-to-30 months. (The most common duration of unemployment assistance is 18 months, and for persons over 55 the duration is that necessary to arrive to the age in which he/she starts receiving the contributory retirement pension.) There is also a last resort scheme called the *Renta Mínima de Inserción* (Minimum Income for Insertion). Family benefits are income-related. The tax unit is the individual; nevertheless family units have the option of filing their tax returns on a joint basis. Finally, there is the programme named *Programa de Renta Activa de Inserción* (Insertion Active Income Programme), whose objective is to help long-term job seekers, older than 45, among other groups, to re-enter in the labour market. This programme lasts for 11 months.

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

1.1. Average Worker wage (AW)

According to the Centre for Tax and Policy and Administration, the 2012 AW level is EUR 25 558.¹

¹ AW refers to the Average Wage estimated by the Centre for Tax Policy and Administration (www.oecd.org/ctp). For more information on methodology see *Taxing Wages 2009-2010*, OECD, 2011, part 4, sections 2 and 3.

2. Unemployment insurance

2.1 Conditions for receipt

Unemployment benefit can be paid to a registered unemployed person aged 16-65, who is available and actively seeking work, and who did not leave his/her previous job voluntarily. Additionally, unemployed persons have to subscribe to a pledge of activity by virtue of which they commit themselves to search actively for a job and to accept a suitable job.

On all the levels of protection by unemployment either the unemployment insurance one or the unemployment assistance one and in their different categories, applicant and beneficiary workers of the benefit by unemployment are obliged to sign and comply with an a "commitment of activity", understanding by such a to look for a job actively, to accept a placement suitable and to take part in actions addressed to raise their employment, in accordance with Law 45/2002, of 12 December (Article Firstly Eleven). This condition must be gathering as a requirement to have the right to any of the benefits considered within the protection system by unemployment.

2.1.1 Employment conditions

None

2.1.2 Contribution conditions

A claimant must have contributed for a minimum of 360 days in the 6 years preceding the legal status of unemployment

2.2 Calculation of benefit amount

2.2.1 Calculation of gross benefit

It is 70 per cent of reference earnings for a maximum period of 180 days, then 50² per cent of reference earnings for the remaining period of the benefits (see section 2.4 for the duration of the benefit); reference earnings correspond to the average gross earnings over the last 180 days.

The benefit is limited by a maximum and a minimum that depend on the number of dependent children below age 26. Both are expressed as a percentage of the IPREM (public indicator of incomes of many effects) from 01/07/2004, with an increment of 1/6 (proportional to bonus payment). For 2012, IPREM is EUR 621.26 per month, that is EUR 7455.14 yearly³, including in both cases the proportional part of bonus payment.

² Established by Law 20/2012 of 13th July for the right to the allowance from July 15th.

³ -. Established by Law 39/2010, of 22th December. In case of excluding the bonus payments the amounts are as follows: EUR-532.51 per month and EUR-6390.13 yearly.

Family type	In per cent of IPREM*	
	Minimum	Maximum
	80	175
With no dependent children	(497.00 €/month)	(1087.20 €/month)
	107	
With dependent children	664.74 €/month)	
		200
One child		1242.52€ /month)
		225
Two or more children		(1397.83 €/month)

* With an increment of 1/6 (proportional to bonus payment).

2.2.2 *Income and earnings disregards for benefit recipients and those starting a new job*

The maximum and minimum unemployment benefits are reduced in proportion to hours worked in relation to the company's normal full working day.

2.3 *Tax treatment of benefit and interaction with other benefits*

Normally taxable. For a person on unemployment insurance, the total social security contributions amount to 100⁴ per cent of 4.7 per cent of reference earnings, subject to lower and upper ceilings (see section 10.3).

2.4 *Benefit duration and waiting periods*

The total duration increases with contribution record. There is no waiting period; the benefit is paid 30 days per month.

Time worker contributed within last 6 years (in days)	Duration of unemployment benefit (in days)
360-539	120
540-719	180
720-899	240

⁴ For legal unemployment situation produced from July 15th 2012. Law 20/2012.

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

900-1079	300
1080-1259	360
1260-1439	420
1440-1619	480
1620-1799	540
1800-1979	600
1980-2159	660
2160+	720

When the benefit is expired, in some cases is possible to receive the unemployment assistance (see point 3.)

2.5 *Treatment of particular groups*

2.5.1 *Young persons*

None

2.5.2 *Older workers*

None

2.5.3 *Others if applicable*

As from 1st June 2002, casual agriculture workers pay the contribution to Social Security for covering the contingency for unemployment and they have the right to receive unemployment benefit. The duration of the allowances depends on the period of contributions having been paid during last six years, and it oscillates between a minimum of 120 days, when the period of contributions has been at least from 360 to 539 days, and a maximum of 720 days, when the period of contributions has been from 2 160 days or more. From 1st June 2002 the covering of the contingency for unemployment is "compulsory".

3. Unemployment assistance

3.1 Conditions for receipt

For those unemployed, who are registered as job seekers, without having refused an offer of a suitable job or having refused to participate, except by reason of a justified cause in actions of promotion, training or professional reconversion and without any income of any kind which exceeds, with respect to monthly computation, 75 per cent of the minimum inter-professional wage, excluding the proportional part of the extra payments, and are in one of the situations described under. It consists of monetary unemployment assistance and the Social Security contribution corresponding to health coverage, family protection, and when appropriate, retirement.

The time and contribution to Social Security depends on the type of subsidy the worker is entitled to. There are the following types:

- Workers who have exhausted their unemployment benefits and have family responsibilities.
- Workers over 45 who have exhausted their unemployment benefits and who do not have family responsibilities.
- Spanish emigrant workers who, having returned from countries not pertaining to the European Economic Area or with which no agreement exists regarding unemployment insurance, can prove having worked a minimum of 12 months in the last six years in said countries since their last departure from Spain, and are not entitled to unemployment benefits.
- Workers who, having the legal unemployment situation, did not meet the minimum contribution period to be eligible for contributory unemployment benefits. In this case the job loss is not voluntary.
- Those released from prison.
- Workers who, after a medical revision, are declared fully capable or partially disabled due to recuperation from a situation of great disability, or absolute or complete permanent disability for usual work.
- Unemployment subsidy for workers over 55 ⁵.

Family responsibilities will be understood to mean having to support a spouse and/or children under twenty-six years of age or those who are older and disabled, when the income of household, including that of the applicant, divided by the number of members which make up the household in question, does not exceed 75 per cent of the Minimum Inter-Professional Wage, excluding the proportional part of the extra payments. Apart from the applicant, there should be another member whose earnings were below 75 per cent of the Inter-Professional Wage, excluding the proportional part of the extra payments.

⁵ Established by Law 20/2012, of 13 July 2012.

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

3.1.1 *Employment conditions*

3.1.2 *Contribution conditions*

3.2 ***Calculation of benefit amount***

3.2.1 *Calculation of gross benefit*

It is 80 per cent of the IPREM (public indicator of incomes of many effects) from 01/07/2004, excluding the proportional part of bonus payments. The IPREM in 2012 was EUR 532.51€ per month.

3.2.1.1 *Irregular additional payments*

None

3.2.1.2 *Obligations of family members*

In case that the family responsibilities are required, they should be in place at the moment of the cause giving rise to the situation of the worker and during the period of time of receiving the allowance.

3.2.2 *Income and earnings disregards for benefit recipients and those starting a new job*

It is means-tested. The condition to receive the benefit is that there are no individual earnings in the family over 75 per cent of the interprofessional minimum wage that was monthly EUR 641.40 in 2012. There are no disregards. The unemployment assistance is compatible with part-time work as an employee, if the worker chooses to keep receiving the allowance in a amount reduced in the same proportion as the number of daily working hours done (but always if the earnings do not overcome the 75 per cent of the interprofessional minimum wage).

3.3 ***Tax treatment of benefit and interaction with other benefits***

Taxable. Not subject to social security contributions. Recipients for whom UA is the sole income source do not pay tax.

3.4 ***Benefit duration and waiting periods***

There is a waiting period that consists in be registered as a job seeker during one month before the causing fact, except in the case of the workers who did not meet the minimum contribution period to be eligible for contributory unemployment benefits.

In general, the duration is six months, which may be extended for a further two periods of the same duration, up to a maximum of 18 months. In some cases, unemployment assistance duration can be extended to 24 or 30 months for claimants whose contributory unemployment benefit has run out and have family responsibilities.

For persons over 55, this benefit continues as long as is necessary, until the claimant either re-enters the workforce or reaches statutory retirement age, at which point he/she is eligible for the contributory retirement pension.

3.5 Treatment of particular groups

3.5.1 Young persons

None.

3.5.2 Older workers

Workers aged 55 or over, having exhausted their UI benefits, may be entitled to prolonged unemployment benefits at a flat rate of 80 per cent of the IPREM. This benefit lasts until they reach retirement age.

3.5.3 Others if applicable

In the Autonomous Communities of Andalucía and Extremadura, due to high level of unemployment in the agriculture sector, casual agriculture workers who have worked 35 days, at least, in agriculture jobs during the 12 months previous to the unemployment situation can have the right to receive unemployment subsidies in some circumstances.

Income for casual agriculture workers. (*Renta Agraria*) :

Casual agriculture workers living in the Autonomous Communities of Andalucía y Extremadura who are registered as unemployed, have worked 35 days, at least, in agriculture jobs during the 12 months previous to the unemployment situation, meet other requirements and have not the right to receive the *Subsidy of casual agriculture workers*, can have the right to receive the unemployed subsidy called *Renta Agraria*. The incorporations that happen for the first time are registered in the new system named "*Renta Agraria*".

Programme of active income for job insertion(*Renta Activa de Inserción*):

The objective of this programme is to help long-term unemployed claimants over 45 who are in situations of need, to get back to work. In order to claim this benefit, unemployed claimants must have reached the age of 45, have exhausted their Unemployment Benefit or Unemployment Assistance, and not to have the right to Unemployment Benefit or to Unemployment Assistance, have been registered at the Employment Office for at least 12 months and not to have any income exceeding 75 per cent of the interprofessional minimum wage, excluding the proportional part of bonus payments. Also those who met the following requirements may be eligible: disabled workers affected to a degree of 33 per cent or more and met all the requirements as set up above with the exception of being over 45 years of age; emigrants who have returned to Spain in the 12 months prior to receipt of the application and have worked at least 6 months abroad and met all the requirements with the exception of having been registered during the last 12 or more months; workers who have been victims of domestic violence and met all the requirements with the exception of age and having been registered during the last 12 months. The allowance is the equivalent of 80 per cent of IPREM and the duration is for a maximum of 11 months

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

4. Social assistance

There is a minimum income scheme called the *Ingreso Mínimo/Renta Mínima de Inserción* (Minimum Income for Insertion - MII) implemented in the 17 Autonomous Communities (regions). There is no specific national legislation defining it, but the general principle is to alleviate poverty by means of cash benefits for basic living needs. Each Autonomous Community has its specific law regulating the MII. In the year 2011 the basic amount for the holder of the MII is 422,36 €/per month and the budget spent: 843 113 610.25 €

The number of holders in the year 2011 was: 223940; the number of dependent members: 330149.

The MII consists of periodical subsidies, but with a specific duration (periodical renewal is required), provided that the requisites are maintained and fulfilled the compromise acquired in the corresponding agreement signed for his/her social and labour integration and following the measures of social on-going support established with every claimant.

The monetary amount is annually updated; as well as every year the funds are allocated in the budget through general laws of each Autonomous Community for financing the MII.

The region of Madrid is considered below as being representative:

The basic amount for the holder is 375.55 € per month and the budget spent: 71 741 000 € in the year 2011.

4.1 Conditions for receipt

The claimant must be available and actively seeking work. The minimum age is 25 or less if the claimant has dependants (although it can be 18 in certain regions), and the maximum age is 64 (old-age pension from 65). Qualifying households must pass an income test.

The claimants, who participate in social and labour measures for integration and in the social on-going support measures which are established with each claimant, receive a monthly income supplement.

In the region of Madrid the claimant is older than 25 and younger than 65. He or she has to be registered in the municipality of the region during the previous year of the application, set up an independent nuclear family 6 months previously, and lack of sufficient economic resources to face the basic needs for living.

Qualifying households must pass an income test, and they cannot have incomes in 2012 over the following amounts:

Number of members and limit amount of income in €	
1 person	375.55

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

2 people:	488.22
3 people	563.33
4 people	638.44
5 people	713.55
6 people	788.66
7 people	863.77
8 people	938.88
9 people	1013.99
10 people	1089.1

4.2 *Calculation of benefit amount*

4.2.1 *Calculation of gross benefit*

In 2012 the scale of the MII, depending on the number of dependent members in the family, is the following

Number of people	Monthly amount in €	Supplement in €
1st person	375.55	
2nd person		112.67
3rd person and following		75.11

In any case, the amount per month will be over 532.51 € (amount equivalent to the IPREM for 2012) for families with more than one dependent member.

4.2.1.1 *Irregular additional payments*

None

4.2.1.2 *Obligations of family members*

None

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

4.2.2 *Income and earnings disregards for benefit recipients and those starting a new job*

It is means-tested on a one-to-one basis, using gross family income excluding family benefits. There are no disregards

4.3 ***Tax treatment of benefit and interaction with other benefits***

Taxable, but the tax system is structured such that a year-long recipient will pay no tax

4.4 ***Benefit duration and waiting periods***

It lasts as long as the conditions are fulfilled

4.5 ***Treatment of particular group***

4.5.1 *Young persons*

None.

4.5.2 *Older workers*

None.

4.5.3 *Others if applicable*

None.

5. Housing benefits for rented accommodation

Some regions (including Madrid) apply housing benefit schemes. A tax credit for housing expenses does exist (see section 10.1.1) at a national level.

5.1 Conditions for receipt

5.2 Calculation of benefit amount

5.2.1 Calculation of gross benefit

5.2.2 Income and earnings disregards

5.2.3 Costs eligible for housing benefits

5.3 Tax treatment of benefit and interaction with other benefits

5.4 Treatment of particular groups

5.4.1 Young persons

5.4.2 Older workers

5.4.3 Others if applicable

6. Family benefits

A. Economic allowance for each child dependent from the beneficiary, aged under 18, or over that age if suffering an impairment of a degree equal to or higher than 65 percent, whatever the legal nature of the child's filiations, as well as fostered minors under family fosterage, be it permanent or pre-adoptive.

B. One-off lump-sum economic benefit for birth or adoption in the following cases: large families, lone-parent families (see point 9 "Lone-parent benefits") or disabled mothers.

C. One-off lump sum economic benefit for multiple birth or adoption.

.6.1 Conditions for receipt

A.-To have dependent children of less than 18 years of age or older disabled children affected to a degree equal to 65 per cent or more.

-For not disabled children: Not to receive yearly income over EUR 11 376.66 for the year 2012.

-For disabled children: No limit of economic resources

B.-For children who has been born or adopted from November 16th 2007

-In case of disabled mothers, they have to be affected by a disability of 65 per cent or more.

-The same limits for the incomes than in benefit A, with the difference between large families and the rest of the families.

C-Children born in multiple births, if their number is equal to or higher than two, as well as adopted children if their number is equal to or higher than two, originate the entitlement to this benefit. The birth or legalization of the adoption have to take place in Spain, or, if abroad, it should be accredited that the born or adopted child is immediately going to be integrated in the family nucleus residing in Spain.

· -In cases of multiple birth or adoption, if one of the children has a disability equal to or higher than 33 percent, it will be taken into account as two.

-There is no limit of incomes.

6.2 Calculation of benefit amount

6.2.1 Calculation of gross benefit

A.-In 2012, the amount is the following, per dependent child, depending on the situation:

- Children under 18:

- a) No disabled children : EUR 24.25 per month (EUR 291 per year).

- b) Disabled to a degree of 33 per cent or more: EUR 83.33 per month (EUR 1000 per year).

- Children over 18:

- a) Disabled to a degree of 65 per cent or more: EUR 357.70 per month (EUR 4292.40 per year).

- b) Disabled to a degree of 75 per cent or more and needing the help of another person: EUR 536.60 per month (EUR 6439.20 per year).

The right to entitlement will be the total benefit in the case of disabled children, without having into account the level of family income.

In the case of children no disabled, the right to entitlement will be:

- The receipt of the total benefit, provided it does not exceed the upper limit laid down of – 11376.66 euros/year, increased by 15 per cent, namely 1706.49 euros/year, for each child after the second one. For large families, the limit will be 17122.59 euros when there are 3 dependent children, increasing by 2773.39 euros for each dependent child after and including the fourth child.

The benefit will be reduced if the income is above that specified in the previous item but at the same time below the amount found adding to this figure the amount of the subsidy for the number of children who are not disabled(maximum limit).

The following table allows us to establish the limits for maximum integrated benefit and for maximum income depending on the number of dependent children.

Number of dependent children	Limit for maximum integrated benefit (EUR)	Maximum limit of income (EUR)
1	11376,66	11667,66
2	13083,15	13665,15
3*	17122,59	17995,59
4	19895,98	21059,98

* From 3 dependent children and for large families.

In any case, in order to have the right, the difference between two items must be equal or superior to EUR 24.25 per child/year.

B. One off payment of EUR 1000.

C. An amount paid in one-off payment according to the number of children born:

-2 children, 4 times the monthly amount of the Minimum Inter-professional Wage, EUR 2565.60 for the year 2012.

-3 children, 8 times the Minimum Inter-professional Wage, EUR 5131.20 for the year 2012.

-4 children and more, 12 times the Minimum Inter-professional Wage, EUR 7696.80 for the year 2012.

6.2.1.1 *Irregular additional payments*

None

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

6.2.2 *Income and earnings disregards*

A. The right to entitlement will be the total benefit in the case of disabled children, without having into account the level of family income.

C. This benefit doesn't take into account the incomes of the recipient.

6.3 *Tax treatment of benefit and interaction with other benefits*

Not taxable

6.4 *Treatment of particular groups*

None.

6.4.1 *Young persons*

6.4.2 *Older workers*

6.4.3 *Others if applicable*

7. Childcare for pre-school children

Pre-primary education is conceived as a single education-oriented level with structural and curricular development similar to the rest of educational levels in Spain. It caters for children from 0 to 6 years and it is divided into two three-year stages. The second stage (children aged 3 to 6) is free of charge both in public and government dependent private schools.

In 2010/2011, the net enrolment rate in pre-primary education is 29,8 % (443.279 children) for the under 3 years and concerns 99,4 % (1,469.101 children) of children from 3 to 5 years (Source: Non-university education Statistics - Provisional data 2011-2012. Ministry of Education, Culture and Sport)

There is also care provision for children outside the education system. In 2010 the 46,7 % of under 3 years children received care provision in an institution outside of their household (Source: Community Statistics on Income and Living Conditions – National Institute of Statistics/Eurostat)

A progressive increase of the places was offered for integrated education and care for children aged 0 to 3 and their inclusion in the education system as a measure of the National Reform Program. In this way, the Ministry of Education developed the Plan Educa3, in order to increase the places offered and their inclusion in the education system. Between 2008 and 2011, 386,6 million euros were allocated by the Ministry of Education for Pre-Primary Education for building new pre-primary school and adapting existing schools..

Compulsory schooling starts at age 6 in the first grade of primary education.

7.1 Out-of-pocket childcare fees paid by parents

Full-time childcare

Pre-primary education in public and government dependent private schools for children from 3 to 5 years is free of charge.

There are a wide variety of situations throughout the different autonomous or local administrations regarding the expenditure, in centers that attend to children under 3 years of age, during the working day of their parents. Therefore it is difficult to estimate an average fee. Despite this, a relationship exists between the amount of fees paid by the families according to the level of income and/or the number and ages of children in care.

Almost all the Autonomous Communities have a specific allocation of public places that are subsidized and are, consequently, of lower cost for the families. The level of income of the family group is subject to the establishment of an appropriate fee. Furthermore, to determine the fees payable, a scale in function of various criterion is also established including if; a “family group” is based upon there being a lone-parent, there are siblings in the center, both parents work, etc.

It is difficult to generalize, but it could be considered that on average the parents paying for places in public centers pay 1/3 of the value for the place, and the remaining 2/3 is covered by civil services (local corporations, autonomous and/or central government).

In the private centers the family must paid the total cost.

Part-time childcare

[Does a different fee schedule apply to parents who use childcare only part-time?]

7.2 Child-care benefits for formal centre-based care

[cash benefits received by parents for children in childcare]

7.2.1 Conditions for receipt

7.2.2 Calculation of benefit amount

7.2.2.1 Calculation of gross benefit

[Is the benefit calculation changed if only part-time childcare is used?]

7.2.2.2 Income and earnings disregards

7.2.3 Tax treatment of benefit and interaction with other benefits

For the mothers workers (and lone- parents) with children under 3 years, there are a general deduction in the tax on the income of individuals for a amount of EUR 1,200 per year. Some Autonomous Communities establish additional deductions for childcare fees of children under 3 years in centers.

7.2.4 Treatment of particular groups

[e.g. lone parents, immigrants, part-time employees, self-employed, sick or disabled]8. Employment-conditional benefits

7.3 Child care allowance for children not using child care centers

[Is any of this home-care benefit payable if formal centre-based childcare is being used part-time?]

[Are there any conditions on working that need to be satisfied to receive this benefit?]

[Are the income disregards and taxability of this payment different to those of the benefit for centre-based care?]

8. Employment-conditional benefits

8.1 Conditions for receipt

The new labour market reform enacted in February by Royal Decree-Law 3/2012, of February 10, converted into Law 3/2012 of 6 July, sets up a more rigorous and selective policy as regards the current social security contributions bonus system.

In this sense, the current SS contributions bonus system focuses on young people up to 30 years and in low-skilled workers of 45 year old with a prolonged unemployment stay. Alongside these two groups, the system maintains the previous regulation of the SS contributions bonus system directed to people with disabilities, new self-employed, labour market insertion companies and victims of gender violence, along with those that are intended to maintain the activity of workers over 59 years.

Since August of 2011 the bonifications are extensibles to the new contract for training and apprenticeship with young people of 20 to 25 years old without certificated qualifications, excepcionally until 30 years old. Recently, the Royal Decree 1529/2012, of November 8 regulate this contract and the dual training for young people.

The table below shows the current Social Security contributions bonus system in force since February of 2012:

NEW SYSTEM OF THE EMPLOYMENT PROMOTION: 2012

ROYAL DECREE-LAW 3/2012- LAW 3/2012- ROYAL DECREE 20/2012

GROUP	DESCRIPTION	ANNUAL AMOUNT (EUROS)				LENGTH
BONUSES AWARDED TO RECRUITMENTS FOR AN INDEFINITE CONTRACT (LAW 3/2012)						
Enterprising	-Enterprises< 50 workers -Indefinite period and full-time -Trial period 1 year	Young 16-30 male	JYoung 16-30 female	>45 LTU male	>45 LTU underrepre sentated	
		1.000 1st year 1.100 2nd year 1.200 3th year	1.100 1st year 1.200 2n year 1.300 3th year	1.300	1.500	3 years
		FISCAL DEDUCTION -1st hiring worker< 30 old years: 3.000 Euros -Unemployed with unemployment benefit: 50% of unemployment benefit until 12 monthly maximun (posibility of wage + 25% of benefit unemployment by worker)				

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

Permanent discontinuous	In tourism, wholesale and building sectors.	50% contributive Social Security			During the working months in mars to november until 31/12/2013
Disabled persons (Law43/2006)			Disabled women	Older than 45 with a disability	
	- In general	4.500	5.700	5.700	All contract life
	- In case of a severe disability	5.100	6.300	6.300	All contract life
Gender and domestic violence victims	New conversion´s contracts (Law 43/2006)	1.500			4 years
People in situation of social exclusion		600			4 years
Terrorism victims		1.500			4 years
BONUSES TRAINING CONTRACTS					
Training and apprenticeship		-Reducción employer contributions 100% enterprises < 250 workers; 75% others -Reduction worker contribution 100% -Indefinite conversion: 1.500€/year - Women´s indefinite conversión 1.800€			3 years
BONUSES IN EXCEPTIONAL CASES OF TEMPORARY RECRUITMENT(Law 3/2012)					
Disabled persons hired with a temporary employment promotion contract	Men <45 old years	Men >45 old years	Women < 45 old years	Women >45 old years	
- In general	3.500	4.100	4.100	4100	All contract life
- In case of a severe disability	4.100	4.700	4.700	4.700	All contract life
Gender and domestic violence victims	600				All contract life
People in situation of social exclusion	500				All contract life
Terrorism victims	600				All contract life
BONUSES TO RECRUITMENTS OF PERSONS WITH A DISABILITY FOR THE SPECIAL CENTERS OF EMPLOYMENT (LAW 43/2006)					
Permanent, or temporary contracts and conversions of temporary contracts in permanent contracts	100 % of the employer contributions to Social Security, including those for work accidents and occupational illnesses and joint collection quotas				All contract life

OTHERS AIDS TO PROMOTE THE EMPLOYMENT

- Young self-employed workers <30 at the beginning of the activity: A 30% reduction in the minimum contribution base for 30 months (Law 20/2007, the 11th of July).
- Assistance for disabled workers to settle as self-employer workers: Bonuses awarded of 50% in the minimum contribution base for at the most 5 years (Law 43/2006, DF 6^a).
- Support in the recruitment of labour trainers: A fixed subsidy which depends on the number of workers in the company, type and degree of the disability: 6.600, 4.000 y 2.500 euros/year (RD 870/2007, the 2nd of July).
- Permanent/Temporary hiring of people in social exclusion in insertion companies: Bonuses awarded of the contribution to Social Security with an amount of 850 € per year, maximum 3 years. (Law44/2007, the 13th of December, for the regulation of insertion enterprises).
- Hiring in permanent contracts for workers over 59 or those who have been working 4 or more years in the same company: 40% reduction in the contribution to Social Security, maximum 1 year (Law 42/2006, the 28th of December, Budgetary).
- Permanent hiring of unemployed workers with family responsibilities: bonuses awarded of 1.500 €/year.
- Capitalization of the unemployment benefit to promote self-employment: Increase up to 60% of the total benefit (it was the 40% before).
- Contracts for training with young workers: bonus of 100% of the contribution to Social Security during the entire contract life.
- Contracts for training and apprenticeship with young people of 20 to 25 old years without certificated qualifications (temporarily until 30 old years): bonus of 100%/ 75% of the employer contribution to Social Security, if small and medium enterprise or big enterprise, respectively, during the entire contract life (RD-Law 10/2011).

8.2 *Calculation of benefit amount*

8.2.1 *Calculation of gross benefit*

8.3 *Tax treatment of benefit and interaction with other benefits*

8.4 *Benefit duration*

8.5 *Treatment of particular group*

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

8.5.1 *Young persons*

8.5.2 *Older workers*

8.5.3 *Others if applicable*

9. Lone-parent benefits

One-off lump-sum economic benefit for birth or adoption in lone-parent families (see point 6. Benefit B).

9.1 Conditions for receipt

-For children who has been born or adopted from November 16th 2007

-Not to receive yearly income over EUR11376,66.

9.2 Calculation of benefit amount

9.2.1 Calculation of gross benefit

-One off payment of EUR 1000.

-The receipt of the total benefit, provided it does not exceed the upper limit laid down of 11376,66 euros/year, increased by 15 per cent, namely 1706,49 euros/year, for each child after the second one. For large families, the limit will be 17122,59 euros/year when there are 3 dependent children, increasing by 2773,39 euros for each dependent child after and including the fourth child.

The benefit will be reduced if the income is above that specified in the previous item but at the same time below the amount found adding to this figure the amount of the subsidy for the number of children who are not disabled(maximum limit).

In any case, in order to have the right, the difference between two items must be equal or superior to EUR 24.25 per child/year.

9.2.1.1 Irregular additional payments

None

In cases where the absent parent does not pay any child support/alimonies. The amount of the child support/alimony is established by judicial procedure, in case of not receive this payment, the lone parent has to initiate judicial proceedings. This situation is taken into account to these benefits.

9.2.2 Income and earnings disregards

None

9.3 Tax treatment of benefit and interaction with other benefits

Not taxable

9.4 Benefit duration

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

9.5 *Treatment of particular group*

None

9.5.1 *Young persons*

9.5.2 *Older workers*

9.5.3 *Others if applicable*

[e.g. immigrants, part-time employees, self-employed, sick or disabled]

10. Tax system

10.1 Income tax

10.1.1 Tax allowances and credits

10.1.1.1 Standard allowances

Basic reliefs: Married couples filing jointly may claim an allowance of EUR 3 400. This figure amounts to EUR 2 150 for heads of households.

Maternity tax credit: a non-wastable tax credit addressed to working females with children under 3 years of age up to EUR 1 200

Relief for social security contributions: All these payments are fully deductible.

Work related expenses: Net work income (gross income less employee social security contributions) may be reduced according to the following rules:

- Taxpayers with net employment income equal or less than EUR 9 180: EUR 4 080
- For those with a net employment income between EUR 9 180.01 and EUR 13 260: EUR 4080 less the result of multiplying by 0.35 the difference between net income and EUR 9180.
- Taxpayers with net income over EUR 13 260 or non employment income over EUR 6 500: EUR 2 652.
- *Work related tax deduction:* working taxpayers with a tax base under EUR 8 000 may deduct EUR 400. The amount is phased-out as taxpayer's tax base increases according to the following formula: $\text{EUR } 400 - 0,1 * (\text{tax base} - \text{EUR } 8\,000,01)$, reaching a zero value when taxpayer's tax base reaches EUR 12 000. Prior amount will not exceed the result of applying the average tax rate to net work income less work related expenses allowance

As a result of the application of the above rules, net income cannot become negative.

10.1.1.2 Exempt Income

- The base amount is EUR 5 151 per taxpayer. The same amount is granted for family units filing jointly. Taxpayers aged over 65 years may add EUR 918 to the former amount. Those aged over 75 years may claim additionally EUR 1 122.
- Dependent children (under 25 years): EUR 1 836 for the first dependent child; EUR 2 040 for the second one; EUR 3 672 for the third, and EUR 4 182 for the fourth child.
- Child care allowance: an additional allowance of EUR 2 244 for each of the above dependent children under 3 years of age.

Child allowances have to be shared equally between spouses when they file separately.

10.1.2 *Income tax schedule (central government income tax)*

General rates of tax – resident individuals:

Taxable income (EUR)	Tax at the lower limit (EUR)	Tax rate on taxable income in excess of the lower limit (%)
0 – 17 707.20	0	12.75
17 707.20 – 33 007.20	2 557.67	16.00
33 007.20 – 53 407.20	4 705.67	21.50
53 407.20 – 120 000.20	9 091.67	25.50
120 000.20 – 175 000.20	26 072.88	27.50
175 000.20 – 300 000.20	41 197.88	29.50
Over 300 000.20	78,072.88	30.50

10.1.3 *State and local income taxes*

Regional rates of tax – resident individuals:

Taxable income (EUR)	Tax at the lower limit (EUR)	Tax rate on taxable income in excess of the lower limit (%)
0 – 17 707.20	0	12.00
17 707.20 – 33 007.20	2 124.86	14.00
33 007.20 – 53 407.20	4 266.86	18.50
Over 53 407.20	8 040.86	21.50

10.2 *Treatment of family income*

As a general rule, the tax unit is the individual. Nevertheless, families have the options of being taxed:

- As married couples filing jointly on the combined income of both spouses and dependants.
- As heads of households (only unmarried or separated individuals with dependents).

10.3 *Social security contributions and payroll taxes*

10.3.1 *Contributions payable by employees and benefit recipients*

Social Security contributions are assessed on the basis of employees' gross earnings taking into account certain ceilings of gross employment income. In 2012 these ceilings are:

- Lower ceiling: EUR 8978.40

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

- Upper Ceiling: EUR 39150

These ceilings are based on a full-time job. For part-time workers, ceilings are proportional to the real hours worked (the tax equations used for this Report do not take into account the lower ceiling).

- 4.7 per cent for pensions/sickness and invalidity.
- 1.55 per cent for unemployment (general rate)
- 0.1 per cent for training.

For a person on unemployment insurance, the total social security contributions amount to 65 per cent of 4.7 per cent of reference earnings, with the same lower and upper ceilings. The rest of social security contributions for pensions and sickness (up to 28.3 per cent of reference earnings) are paid by the Public Service of Public Employment (Servicio Público de Empleo Estatal). This public body also pays contributions for individuals on unemployment assistance. Contributions are neither payable over family benefits, nor over social assistance.

10.3.2 Contributions payable by employers

- | | |
|---|---------------|
| • Old age pension/sickness and disability | 23.6 per cent |
| • Unemployment (general rate) | 5.50 per cent |
| • Wages fund | 0.2 per cent |
| • Professional Training | 0.6 per cent |

10.3.3 Payroll taxes

[This heading covers taxes paid by employers or employees either as a proportion of payroll or as a fixed amount per person, and which do not confer entitlement to social benefits. See Annex for details].

10.4 Treatment of particular group

[for income taxes, social contributions and payroll taxes]

10.4.1 Young persons

10.4.2 Older workers

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

10.4.3 *Others if applicable*

[e.g. immigrants, self-employed, sick or disabled, pensioners]

11. Part-time work

11.1 *Special benefit rules for part-time work*

Workers which provide services during a number of hours per day, per month or per year less than the working day of a full-time worker or, in absence of this, less than the maximum legal working day in permanent and temporary contracts.

11.2 *Special tax and social security contribution rules for part-time work*

In general, the monthly contribution base to Social Security is the effective payment received in accordance with the hours worked.

Specifically, the bonuses awarded of the Programme for the Promotion of employment (see 8.1) can be applied with the following rate:

- 100% If the working day is $\geq \frac{3}{4}$ of the full-time working day
- 75% If the working day is $\geq \frac{1}{2}$ of the full-time working day
- 50% If the working day is $\geq \frac{1}{4}$ of the full-time working day
- 25% If the working day is $< \frac{1}{4}$ of the full-time working day.

12. Policy developments

12.1 ***Policy changes introduced: 2nd July 2011 – 1st July 2012***

The Spanish Strategy for Employment 2012-2014, in force from November 21, 2011, is the current framework of employment policies under an integrated approach. The Strategy includes a set of actions and measures guidance, employment and training opportunities to improve access to employment, whether employed or self employed, the unemployed, job retention and career development of persons employed as well as the promotion of entrepreneurship and the social economy, while contributing to the strengthening and modernization of administrative services for development. Collect also the indicative financial allocation for the period 2012-2014, distinguishing between funds of the State budget (around 7,000 million of euros per year) and those approved by each autonomous region (around 466 million of euros in annual average).

In 2012, with the new gouvernement it is aproved an integral labour market reform to correct the shortcoming and the mismatches observed in the labour market. The most relevant mesures are the following:

:

1/ The labour reform, originally instrumented by the Royal Decree-Law 3/2012, on 10 February, on urgent measures for the reform of the labour market and which gave rise to the Law of 6 July, on urgent measures for the reform of the labour market.

The reform contains numerous changes in legislation aimed at the following objectives:

- To foster employability, in particular through the modification of the contract for training and learning. Pivoting on this contract, will have laid the groundwork for the impulse of the dual vocational training that combines theoretical training with the learning in the workplace to a greater extent. The training has also boosted recognizing it as an individual right.
- Reform of the regulatory framework for the companies of temporary work authorizing them to operate as employment agencies. Agencies are called to star in the public private partnership in the field of the activation of the unemployed.
- Encourage the creation of employment and reduce labour duality, in particular through the indefinite contract support to entrepreneurs.
- Promoting internal flexibility in companies as an alternative to the destruction of employment, improving the functional and geographical mobility by facilitating the suspension of contracts of work and shorter working hours and making more flexible the regime of pick up of collective agreements, to prioritize application company Convention and limiting the temporal effectiveness of conventions to one year.
- To foster the efficiency of the labour market to reduce labour duality through the generalization of the compensation of 33 days per year of service, the concretion of the assumptions that allow the dismissals for economic, technical, organizational or

production, reasons so you can resort to them with more security and the abolition of the administrative authorisation of collective redundancies.

2/ The active employment policies reform. The revision of the active policies of employment in Spain, will take a preventive approach to facilitate new opportunities for incorporation into the employment to the unemployed, improving their employability so that you reduce your time spent in unemployment. The measures envisaged may be structured around the following lines of action:

- Reorientation of employment promotion programmes, to improve the efficiency and effectiveness of active employment policies aimed at promoting employment, both through the work on behalf of others through self-employment, giving priority to reduce youth unemployment.
- Reorientation of programmes of vocational training for employment by introducing greater competition, transparency and evaluation in the use of public resources to maximize the impact of the spending directed to improve the employability of workers.
- Improving the coordination of the public employment services and implementation of a culture of evaluation in the field of the active employment policies.

3/ The reform of the unemployment protection and employment incentives introduced by the Royal Decree-Law 20/2012, on 13 July, measures to ensure budgetary stability and competitiveness. Measures reinforce the viability of the system of protection and contribute to the fulfilment of the objectives of budgetary stability to pursue the following objectives:

- Focus protection in situations of loss of employment and personal circumstances that require special attention.
- Promote the activation of the unemployed encouraging the prompt return to the occupation.
- Generate the incentives needed to ensure the sustainability of the public benefit system, contribute to active ageing, and facilitate the activation of more older workers.
- Strengthen the policy system active on the basis of the principle of efficiency, allowing the limited resources available are intended for those most useful initiatives to develop the employability of workers.
- Rationalize the system of benefits in their entirety providing greater internal coherence that will ensure its fairness.

Additionally, the extension of the PREPARA Plan, extended in December 2011, and recently by the Royal Decree-Law 23/2012, on 24 august, that extending the program of professional retraining of people who exhausted their protection by unemployment. This program is a protection mechanism complementary, resting on a treatment individualized and personalized for the inclusion in the labour market.

The Plan has been extended according to the situation of economic recession, and the increase of the unemployment of long term duration and the number of households with all members unemployed.

However, on the basis of the evaluation of their results, it is redefined so that increase its effectiveness as a mechanism of inclusion in the labour market and focused its protective function in the unemployed group, which having no right to other benefits or allowances, present dependents or have the status of unemployed of long duration.

This package of measures aims to establish a regulatory framework favourable to the creation and maintenance of employment, offering companies alternatives to the traditional way of adjustment through layoffs and greater say in your area about the working conditions and in an environment of legal certainty and greater certainty so necessary in these moments as well as improve the efficiency of employment policies.

ANNEX

DEFINITION OF SOCIAL SECURITY CONTRIBUTIONS AND PAYROLL TAXES..

The following text has been adapted from Annex A of the OECD *Revenue Statistics*.

Social security contributions to general government

Classified here are all compulsory payments that confer an entitlement to receive a (contingent) future social benefit. Such payments are usually earmarked to finance social benefits and are often paid to institutions of general government that provide such benefits. However, such earmarking is not part of the definition of social security contributions and is not required for a tax to be classified here. However, conferment of an entitlement is required for a tax to be classified under this heading. So, levies on income or payroll that are earmarked for social security funds but do not confer an entitlement to benefit are excluded from this heading and shown under personal income taxes or taxes on payroll and workforce. Taxes on other bases, such as goods and services, which are earmarked for social security benefits are not shown here [...] because they generally confer no entitlement to social security benefits.

Contributions for the following types of social security benefits would, *inter alia*, be included: unemployment insurance benefits and supplements, accident, injury and sickness benefits, old-age, disability and survivors' pensions, family allowances, reimbursements for medical and hospital expenses or provision of hospital or medical services. Contributions may be levied on both employees and employers.

Social security contributions paid to institutions outside general government

Contributions to social insurance schemes which are not institutions of general government and to other types of insurance schemes, provident funds, pension funds, friendly societies or other saving schemes [are included here if they are compulsory or quas compulsory (e.g., by virtue of agreement with professional and union organisations)]. Provident funds are arrangements under which the contributions of each employee and of the corresponding employer on his/her behalf are kept in a separate account earning

Reference date for all information is **July 1st 2012**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

interest and withdrawable under specific circumstances. Pension funds are separately organised schemes negotiated between employees and employers and carry provisions for different contributions and benefits, sometimes more directly tied to salary levels and length of service than under social security schemes.

Payroll taxes

This heading covers taxes paid by employers or employees either as a proportion of payroll or as a fixed amount per person, and which do not confer entitlement to social benefits. Examples of taxes classified here are the United Kingdom national insurance surcharge (introduced in 1977), the Swedish payroll tax (1969-1979), and the Austrian Contribution to the Family Burden Equalisation Fund and Community Tax.